

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Michael Zajakowski Uhl	Team: Squad #10	CCRB Case #: 201905170	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 06/13/2019 3:55 PM	Location of Incident: On Broadway from Howard Street to Murray Street	Precinct: 01	18 Mo. SOL 12/13/2020	EO SOL 7/30/2021	
Date/Time CV Reported Fri, 06/14/2019 12:04 AM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Fri, 06/14/2019 12:04 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. CPT Christopher Monahan	00000	898101	DB CEIS

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Kevin Lo	04425	954073	001 PCT
2. POM Michael Lebloch	23323	952973	001 PCT
3. POF Karima Timchenko	00016	963778	001 PCT
4. POM Christopher Burns	21097	958352	001 PCT

Officer(s)	Allegation	Investigator Recommendation
A.CPT Christopher Monahan	Abuse: Captain Christopher Monahan stopped the vehicle in which § 87(2)(b) was an occupant.	
B.CPT Christopher Monahan	Abuse: Captain Christopher Monahan threatened to issue summonses to § 87(2)(b)	

Case Summary

On June 14, 2019, § 87(2)(b) filed the following complaint over email with the CCRB.

On June 13, 2019, at approximately 3:55 p.m., § 87(2)(b) drove his taxi south on Broadway in Manhattan when Captain Christopher Monahan, who was driving an unmarked police vehicle, pulled in front of him in the bus lane. § 87(2)(b) honked at Captain Monahan, who then exited his vehicle and told § 87(2)(b) to “pull over right over there” (**Allegation A: Abuse of Authority: Vehicle stop: § 87(2)(g)**). § 87(2)(b) did not believe Capt. Monahan was a police officer so he kept driving and called 911 to report that he feared for his and his passenger's safety.

§ 87(2)(b) eventually pulled over on Broadway between Park Place and Murray Street when PO Kevin Lo, of the 1st Precinct, parked behind him. PO Lo informed § 87(2)(b) that Captain Monahan was an NYPD supervisor. Captain Monahan stated that he, “will issue him a summons, I'll write him a bus and I'll write him evading... You're going to get some summonses” (**Allegation B: Abuse of Authority: Threat of summons: § 87(2)(g)**). Then, Captain Monahan changed his mind and instructed § 87(2)(b) would not be issued any summonses.

The investigation obtained Body Worn Camera footage from PO Kevin Lo (**Board Review 3**), PO Michael Lebloch (**Board Review 4**), PO Christopher Burns (**Board Review 5**), and PO Karima Timchenko (**Board Review 6**). The investigation also obtained § 87(2)(b) dashboard camera footage from his vehicle (**Board Review 2**).

Findings and Recommendations

Allegation A – Abuse of Authority: Captain Christopher Monahan stopped the vehicle in which § 87(2)(b) was an occupant.

Allegation B – Abuse of Authority: Captain Christopher Monahan threatened to issue summonses to § 87(2)(b).

§ 87(2)(b) provided an initial statement over email when he filed his complaint, followed by a brief phone statement and his sworn statement at the CCRB on June 26, 2019 (**Board Review 1**). § 87(2)(g)

In his sworn statement, § 87(2)(b) stated that he was in the middle of the intersection when Captain Christopher Monahan drove by in the bus lane on his right side. The light turned red and § 87(2)(b) got stuck in the middle of the intersection because traffic was backed up and pedestrians began crossing the crosswalk. Captain Monahan stopped his vehicle within the crosswalk on the bus lane side. § 87(2)(b) honked his horn numerous times because he wanted Captain Monahan to move so he could get out of the intersection.

Captain Monahan then exited his vehicle and knocked on the window of § 87(2)(b) taxi and said, “I’m a cop.” § 87(2)(b) replied, “Good for you, “but kept driving because he did not believe Captain Monahan was really an officer. § 87(2)(b) called 911 to report a man attempting to enter his vehicle. He continued to drive with Captain Monahan

in pursuit for five more blocks until he noticed six to eight uniformed officers and a marked police vehicle behind him. PO Lo and PO Lebloch approach Captain Monahan, and § 87(2)(b) heard Captain Monahan instruct them to issue § 87(2)(b) a summons. However, at the end of the interaction, no summons was issued.

§ 87(2)(g)

The investigation obtained dash cam footage from § 87(2)(b) taxi (**Board Review 2**). At 1:34 minutes, § 87(2)(b) enters the intersection of Broadway and Grand Street and stops in the middle of the intersection. Captain Monahan's vehicle, a black Chevrolet Tahoe, enters the bus lane from the right side. § 87(2)(b) repositions his taxi behind the black Tahoe within the beginning of the bus only lane. The light changes to red and § 87(2)(b) honks repeatedly at the black Tahoe. Captain Monahan opens the driver's door of his vehicle, walks to the passenger side of § 87(2)(b)'s taxi, and informs § 87(2)(b) that he is on duty and a Captain within the NYPD and asks why he was honking his horn. § 87(2)(b) states that he was trying to get around Captain Monahan because he was in the intersection. Captain Monahan states "You're in the bus only lane." He tells § 87(2)(b) that he is an NYPD captain and asks for § 87(2)(b) license and registration and instructs him to pull over. When traffic clears, § 87(2)(b) drives away. Captain Monahan attempts to pull § 87(2)(b) over several more times, but § 87(2)(b) continues to drive away as traffic clears. § 87(2)(b) can be heard calling 911 and saying that he did not believe Captain Monahan was an officer. At 12:09 § 87(2)(b) states that marked NYPD vehicle 4313 was behind him and he pulls over on the right side of Broadway between Murray Street and Park Place.

The BWC from PO Lo (**Board Review 3**) shows Captain Monahan stating at 1:30 that he "will issue him a summons, I'll write him a bus lane and I'll write him evading...you're going to get some summons" At 6:00 minutes, § 87(2)(b) says, "I need his name." Captain Monahan says, "Alright give me a summons." He then states at 7:27 that he "really doesn't want to write this guy a summons." The BWC from PO Lebloch (**Board Review 4**), PO Burns (**Board Review 5**), and PO Timchenko (**Board Review 6**) show the same interaction.

§ 87(2)(b), § 87(2)(g)

§ 87(2)(b) The EVENT shows that at 3:56 p.m. on June 13, 2019, § 87(2)(b) called 911 to report a white male posing as an officer. The dispatcher stayed on the line while § 87(2)(b) drove down Broadway, and at 4:03 p.m. he was pulled over by uniformed officers.

It was undisputed that § 87(2)(b) was within an intersection during a red light and the BWC showed him enter the beginning of the bus only lane prior to his vehicle being stopped by Captain Monahan.

According to New York Vehicle and Traffic Law subsection 1175 (**Board Review 10**), "when vehicular traffic is stopped on the opposite side of an intersection, no person shall drive a vehicle into such intersection."

According to the New York City Municipal Code, Traffic Rules and Regulations Subsections 4-12, section 5, paragraph M (**Board Review 11**), “no person shall drive a vehicle other than a bus or a wheelchair accessible Access-A-Ride vehicle having a seating capacity of four or more passengers, within a designated bus lane during the restricted hours.”

§ 87(2)(b), § 87(2)(g)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party. (**Board Review 9**).
- Captain Monahan has been a member of service for 29 years and has been a subject in three complaints and 12 allegations, none of which were substantiated. § 87(2)(g)

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined mediation for this case.
- According to the New York City Office of the Comptroller, no Notice of Claim has been filed regarding this incident.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: 10

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date